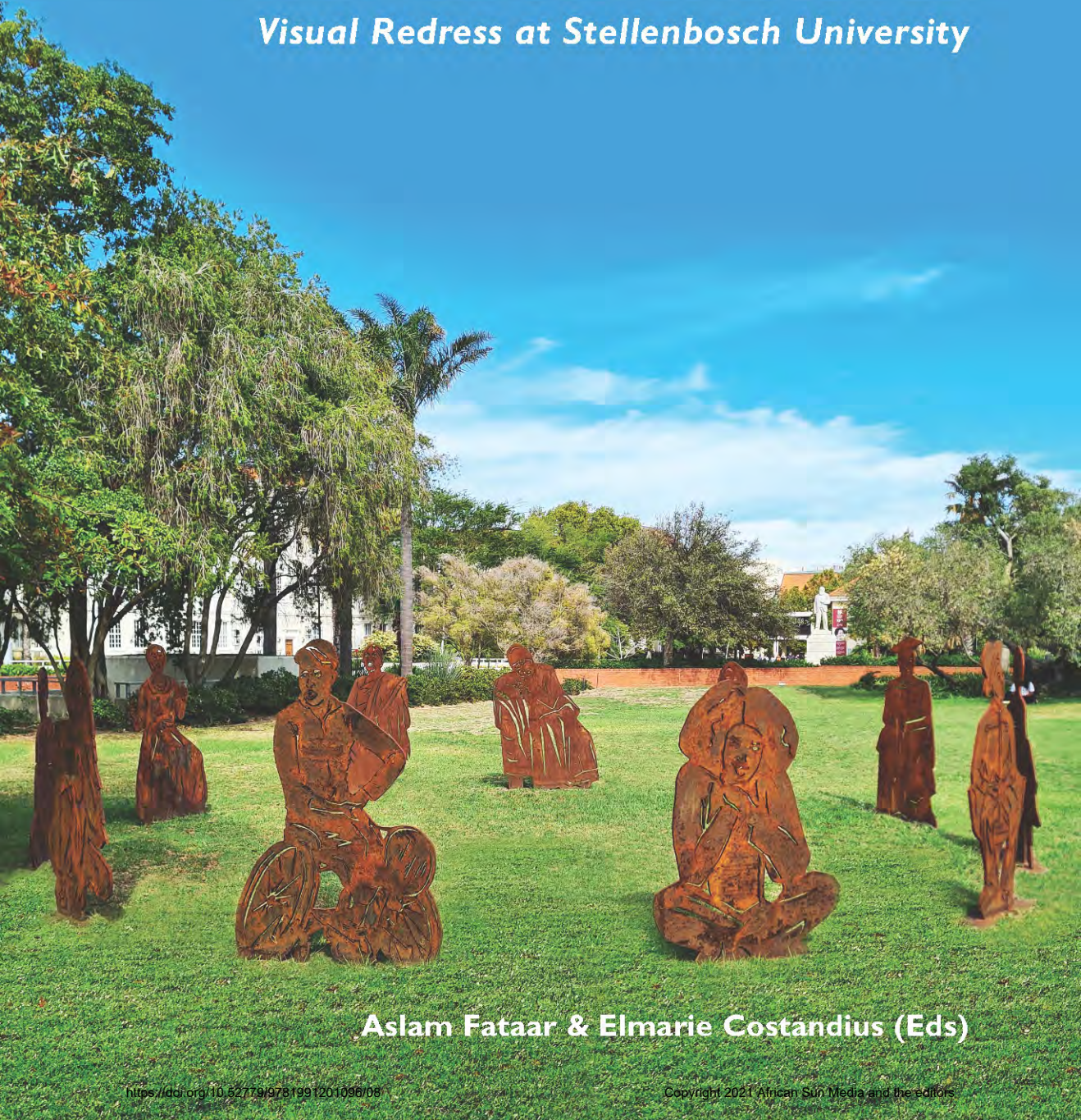


Evoking Transformation

Visual Redress at Stellenbosch University



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Chapter 8

*Law and visual redress: The space between
insider and outsider*

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Introduction

I can identify with the statement that Stellenbosch University (SU) was “historically not designed with my body in mind” (Carolissen, 2018:467).¹ The same holds true for the former Model C schools that I attended from the young age of seven. The majority of the people looked different. They also acted differently from what I was used to. The cultural and religious practices at these schools were foreign to me. There was, however, little choice but to adapt once I crossed the big road separating the ‘coloured’ neighbourhood where I grew up, Idas Valley, from white Stellenbosch. I also crossed that road to attend SU. I still cross that big road when I drop my daughter off at my alma mater before I drive further into the centre of town, where I park my car and proceed to my office in the Old Main Building. I am a lecturer in the Faculty of Law at SU; a faculty that is situated in the Old Main Building. However, SU in my hometown of Stellenbosch still feels like a foreign place, and at times I feel like a visitor or a guest. At the worst of times, I feel like an intruder or an ungrateful guest because of my resistance to the dominant forces and to conform to the dominant institutional culture. At times, I feel that I am not welcome, that I do not belong.

The combined visuals on campus play a huge part in provoking the feeling that I am not welcome, of feeling that I do not belong (see Clark & Costandius, 2020:4–5). With visuals, I include statues, names of buildings and lecture halls, and pictures of people on the walls in various spaces. The impact of the visuals creates a feeling of otherness, as the visuals mostly give recognition and honour to a particular group of society to the exclusion of others. The powerful feelings invoked by visuals cannot be discounted (*Nelson Mandela Foundation Trust v Afriforum NPC*, 2019). SU has acknowledged the importance of visual redress, and defines it as follows:

An attempt to right the wrongs of former and current powers by removing hurtful symbols (e.g. of apartheid), social injustice and misrecognition; and by remedying

1 More broadly, the belief that the “academy was not made for blacks (or women)” has gained prominence (Khunou, Canha, Khoza-Shangase & Phaswana, 2019:5).

the harm that has been caused by these visual symbols by compensation through new visual symbols that should have African centrality as an outcome and that should allow for the inclusion of a variety of expressions, stories, identities and histories (SU, n.d.:3).

Redress, therefore, requires setting things right, compensating, and removing the cause of the hurt (SU, n.d.:3).

As the visual symbols on the SU campus have an impact on notions of social injustice and misrecognition, and by extension, also belonging, I am starkly reminded of the words in the Preamble to the Constitution of the Republic of South Africa 1996 (Republic of SA, 1996), which states that “South Africa belongs to all who live in it, united in our diversity”. The constitutional vision of belonging is therefore an important concept in a democratic South Africa, as the question of who belonged in South Africa was previously racially determined. As such, the Preamble can be direction-giving in reflecting on visual redress and visual redress processes that may ultimately impact on notions of belonging. Various redress processes in the Faculty of Law indeed opened conversations about what it means to be an insider or an outsider, and what it means to belong. As such, this chapter provides a personal reflection on these visual redress processes, and how I experienced them in relation to my sense of belonging.

The chapter is structured as follows: it starts by considering the role of law in establishing the prevailing visuals in institutions of higher learning, such as SU. It proceeds to unpack the impact that the prevailing visuals have on black staff and students, like myself, who traverse these spaces. I then reflect on visual redress processes in and around the Old Main Building. As the law played an instrumental role in the type of visuals at SU, the chapter also considers what role the law, particularly the Preamble to the Constitution, which was also the subject of a contested visual redress project on the SU campus, can play in guiding visual redress processes and broader transformation in general.

The role of law in establishing the prevailing visuals

The Union Constitution of 1909 created a divided state: democratic government for the minority white population and autocratic administrative rule of the majority black population. The segregation policy later became the official state policy named apartheid when the National Party came to power in 1948. The policy of apartheid was implemented by a variety of laws that regulated aspects of public and private life. Chief among these were the Population Registration Act (1950),² the Group Areas Act (1950),³ the Reservation of Separate Amenities Act (1953)⁴ and the Immorality Amendment Act (1957).⁵

The system of apartheid was therefore a deliberate policy to give effect to white supremacy and racial segregation (*Nelson Mandela Foundation Trust v Afriforum NPC*, 2019: para 44).⁶ It was based on the belief that black people “were intellectually inferior, lazy and lesser beings in every respect of consequence” (*City of Tshwane Metropolitan Municipality v Afriforum*, 2016: para 2). As a result of the policy of apartheid and the reservation of institutions for the white population, the visuals in and around these institutions by and large only represent white men. The same is true for historically white universities (Schmahmann, 2013)⁷ such as SU.

On the SU campus, many buildings were named after white men who either played an important role in the apartheid government or were esteemed academics and academic leaders at the institution. While some of the more problematic names,

2 This Act categorised all people into different racial groupings.

3 This Act ensured residential separation. It was under this Act that many black people were forcibly removed from places such as Die Vlakte in Stellenbosch and District 6 in Cape Town.

4 This Act made the creation of separate amenities such as parks, beaches and toilets for different racial groups compulsory. These facilities were not required to be of the same standard, which meant that the white amenities were vastly superior.

5 This Act criminalised sexual intercourse between black and white people.

6 HF Verwoerd, a professor at SU from 1928 to 1937, was also prime minister of South Africa from 1958 to 1966, a time during which black suppression intensified.

7 It was typical for the Afrikaans-speaking universities to celebrate the heroes of the Afrikaner volk (e.g. the statue of T Steyn at the University of the Free State) and the English-speaking universities those of imperialists (e.g. the statues/busts of Rhodes at the University of Cape Town and Rhodes University).

such as DF Malan, have been removed (Brink, 2006:1)⁸ and others, such as RW Wilcocks,⁹ are in the process of removal, a host of academic buildings were named after former deans or rectors who were white and male.¹⁰

Similarly, various plaques in buildings mostly gave recognition to white men only. In May 2015, 21 years after formal apartheid ended, a plaque with the inscription “In grateful memory of the Honourable HF Verwoerd, Prime Minister of the Republic of South Africa, after whom this building was named on 3 April 1963 and who on 6 September 1966 died in Parliament in the service of his people” was removed from an academic building on the SU campus. In the Old Main Building there is still a plaque (see Figure 8.1) listing the professors of the Old Main Building and the Faculty of Law, which contains the names of white men only, among others HF Verwoerd, who was professor in Sociology and Social Work from 1928 to 1937.¹¹

8 DF Malan was prime minister of South Africa from 1948 to 1954. During his tenure, the foundation for apartheid was firmly established. He was also the chancellor of SU from 1941 to 1959. For this reason, Brink speaks of the close link between the University and the ‘power structures of Afrikanerdom’. The DF Malan Gedenksentrum, a building erected close to the Danie Craven Stadium to honour Malan’s memory, was renamed the Coetzenburg Centre.

9 RW Wilcocks chaired the Wilcocks Commission (Commission of Inquiry regarding the Cape Coloured population in the Union, 1938), which, among other things, expressed certain stereotypes about ‘coloured’ people that would later inform policy decisions of the apartheid government.

10 Examples include the GG Cillie Building (which houses the Faculty of Education) and the CGW Schuman Building (which houses a large component of the Faculty of Economic and Management Sciences). GG Cillie was the institution’s first professor of Education in 1911, as well as the first dean of the Faculty of Education when the Victoria College officially became Stellenbosch University in 1918. The following year, Cillie also became the University’s very first rector, a position he held until 1925. CGW Schuman was a founding member and dean of the Faculty of Economic and Management Sciences and also served as acting rector.

11 HF Verwoerd played an instrumental role in the establishment of the apartheid state. The introduction of the Population Registration Act, the Reservation of Separate Amenities Act and the Bantu Education Act came at the time when Verwoerd was the minister of Native Affairs. In the education context, a plaque honouring HF Verwoerd that is still visible at a public university after 1994 is lamentable given his ideology regarding the education of black people.



Figure 8.1: Plaque in Old Main Building (reproduced with permission)

In numerous rooms, including lecture halls across campus, the photos of previous professors adorn the walls. These photos again are mostly of white male professors. An example is the photos that were in lecture room 2027 of the Old Main Building up until the end of 2019 (Photo 8.2). These were large black and white photos of some of the retired professors of Law. I remember attending lectures in room 2027 as a final-year LLB student in 2008 and feeling uncomfortable with these men staring down at me. Part of the reason for the unease, apart from the imposing nature of these photos, was the fact that they did not represent anyone with whom I could identify.



Figure 8.2: Photos in lecture room 2027 (reproduced with permission)

The names of buildings, the names on the plaques and the faces on the pictures portray those who occupied important positions in the institution and serve to show a history of racial domination. It vividly shows the exclusion of those who are black and female. Apart from showcasing the exclusion of black bodies from the space, the visuals do not reflect the ‘hidden histories’. By hidden histories I mean the story of those who were allowed in the space, but for entirely different reasons and purposes, and whose contribution is not given recognition. In the case of SU, coloured¹² men like my maternal grandfather (who grew up in Die Vlakte, but moved to Idas Valley before the Group Areas Act effected the removal of the coloured people from that area) worked as a carpenter on various University buildings, including the GG Cillié Building, directly next to the area of Die Vlakte. These buildings were physically built by black men, yet the University allowed, or tolerated (Madlanga, 2018:359) these men here only for certain purposes. The University also did not actively object to the policy of the state that effectively excluded my grandparents and parents’ generations from studying at SU. Although my sister and I were allowed to study at SU and both now work at the institution, we still navigate an institution with an institutional culture that negatively affects those bodies for whom the University was not built (Fikeni, Gobodo-Madikizela, Nhlapo & Walaza, 2020).

12 My grandfather was classified as ‘coloured’ by the apartheid government in terms of the Population Registration Act.

The impact of the prevailing visuals on black people

White men, such as DF Malan and HF Verwoerd, who were honoured by SU in various ways publicly and openly regarded black people as inferior. In democratic South Africa, these individuals should no longer be honoured or revered, and their statues and pictures and names should be removed (Mbembe, 2016:29–30).¹³ Such an approach would be in line with the interpretation of the Preamble to the Constitution as given by the Constitutional Court in *City of Tshwane Metropolitan Municipality v Afriforum* (2016) (discussed later in the chapter). However, many other white men whose names appear on buildings or whose faces are in various rooms were not necessarily public figures who openly supported the policies of apartheid or considered black people as inferior. It may therefore be appropriate to engage more deeply with these visuals in undertaking visual redress (Jansen, 2020:132).¹⁴

Regardless, when the names, pictures and statues of white men are viewed as a whole, or as a collective, they invoke certain negative feelings among those who are not represented in the imagery or names (Mbembe, 2016:29–30).¹⁵ Schmahmann (2013:189) argues that pictures of predominantly white men “seemed, at least to some, to be imbued with evidence of the policies and practices that prevented people of colour from accessing the university’s hallowed halls as students or staff members, let alone becoming members of its senior management”. Therefore, taken as a whole,

13 In this regard I align myself with Mbembe. He states that the “Rhodes’ statue has nothing to do on a public university campus”, as it is representative of “people who have tormented and violated all that which the name ‘Black’ stands for while they were alive” (Mbembe, 2016: 29). To the contrary, Schmahmann (2020:142) argues that “removal is not necessarily the most productive or transformative way of negotiating such object”. In relation to the Rhodes statue at the University of Cape Town, Schmahmann (2013) relays that the sculptor of the Rhodes statue was Marion Walgate, a female sculptor, and that it is important to note that this sculpture was one of the first major works being commissioned to a woman.

14 See, for instance, Jansen (2020), who speaks about the statues of CR Swart and MT Steyn on the campus of the University of the Free State and the vastly different roles they played in South Africa’s history. Jansen makes the point that failing to make a distinction between different historical figures in deciding what is the appropriate course of action regarding the preservation or removal of a statue would be to fail in the educational aspirations of a university. While I don’t disagree with Jansen, it is important to have regard to the combined effect that visuals that only, or mostly, represent white men may have on black staff and students.

15 On writing about decolonising the university, Mbembe (2016:29) speaks of pictures, icons and symbols “that mentally harass Black students [and staff] on an everyday basis because these students [and staff] know whom these images represent ... figures of people who truly believed that to be Black was a liability”.

the visuals on a campus such as that of SU serve as a reminder of the exclusionary practices that it adhered to since its inception and the negative long-term effect such exclusion has on black people (Roithmayr, 2014).¹⁶ The perpetuating “sea of whiteness” further keeps a certain history alive (Ahmed, 2012:38).

The visuals on campuses more generally are also interwoven with the institutional culture of an institution. Schmahmann (2013:16), for instance, states as follows:

Images and objects which form part of the traditions and visual rhetoric of the institution – its coats of arms or portraits, or the sculptures outside its buildings ... are sometimes interpreted as examples of exclusivity and bias within a university’s institutional culture.

The “Report by the Ministerial Task Team on the recruitment, retention and progression of black South African academics” further links the dominant institutional culture and the negative effect that it has on black academic staff (DHET, 2019:31). At institutions such as SU, the “deeply imbedded culture of whiteness, that has yet to yield to substantive respect for and affirmation of difference and creation of inclusive cultures, has been a major further impediment to change” (Badat, 2016:7). The slowness by which the visuals and the predominantly white teaching staff change at historically white institutions, such as SU, is testament to this. The fact that it takes so long to remove some of the problematic visuals, or contextualise others, serves as a potent reminder of the history of exclusion and the continued resistance to transform institutions of higher learning (Nell, 2018:1–2).¹⁷

It is therefore necessary to embark on a visual redress process that aligns with the overall aim of transforming the institutional culture. Institutional culture is pervasive, subconscious and subtle, but in historically white institutions it grants privileges to those who are “white, male, heterosexual and middle class while marginalising those who are not” (Schmahmann, 2013:16). Although strides have been made, the visual

16 See Roithmayr (2014) for an account of how racial inequality, which disadvantages black people, is reproduced.

17 See, for instance, Nell (2018) for an account of how class photos, which created a sense of exclusion (socially, economically and physically), misrepresentation, misrecognition and of not belonging among black students were ultimately taken down by black students in the Faculty of Theology at SU.

rhetoric at SU shows this institutional culture. White male names on buildings and plaques, statues of white men in open spaces and white faces on walls are still in a dominant position, similar to the dominance of white men in the (senior) academic staff component and management positions.¹⁸

Ultimately, it must be accepted that visual redress, the removal of hurtful symbols and engagement on how to redress those seemingly innocuous symbols are central to the rupturing of an institution's colonial and apartheid past (Fikeni et al., 2020:51). Visual redress, as part of the broader process of transformation of the institution, must therefore be seen as part of a process of deep change in the institutional culture, a culture that negatively affects black academic staff and students.

Visual redress projects at the Faculty of Law: Reflections on two visual redress projects from different vantage points

I pointed out above that visuals representing a particular segment of society while excluding others lead to feelings of alienation and marginalisation. Various visual redress processes in the Faculty of Law hinted at who has a voice, who has power, who is an insider and who is an outsider; in other words, who belongs. I now turn to reflect on two of these processes from two different vantage points. In the first, I was an observer of a visual redress process that was undertaken in my working environment and in which I, as an academic staff member, was consulted. In the second, I was the custodian of a visual redress project that sought to elicit conversations about being an insider or an outsider, about who belongs and who does not belong.

Observing the installation of the Preamble in front of the Old Main Building

The first process relates to the installation of three steel plates with the words of the Preamble in three languages (isiXhosa, English and Afrikaans) in front of the Old Main Building. Prof. Geo Quinot from the Department of Public Law spearheaded the project. I was very much in favour of installing the Preamble directly in front

¹⁸ The Ministerial Task Team reported that 77% of the instructional/research staff at SU are white.

of the Old Main Building and supported it in my capacity as chair of the Faculty of Law's Transformation Committee. Teaching constitutional law, I found the idea of installing the Preamble to the Constitution, which speaks to "recognising the injustices of the past", of honouring those who fought for justice and freedom, the belief that South Africa belongs to all who live in it, healing the divisions of the past and improving the quality of life for all people, directly in front of the Old Main Building, which houses the Faculty of Law, appropriate. I was elated when the model of the installation was presented, as the planned depiction of the Preamble would break the very clear lines of the colonial Old Main Building, and thereby visually break or disrupt the power that colonialism may still hold in this space. Such a gesture would be analogous to the Constitution's ideological disruption of the ideology of colonialism and apartheid. Furthermore, positioning the plates with the Preamble directly in front of the building would emphasise the central role that the Preamble and the Constitution play in establishing a new society that is based on an egalitarian vision of society compared to the racial exclusivism for which the Old Main Building was originally built. I was also excited that the Preamble would be positioned in such a manner that it would serve as a guide to enter the Faculty of Law. The Preamble serves as the statement that sets out the Constitution's "purpose and underlying philosophy" (*City of Tshwane Metropolitan Municipality v Afriforum*, 2016: para 5). It is therefore appropriate for the Preamble to herald entry into the Faculty of Law, where strides are being made to give effect to the purpose and philosophy of the Constitution and specifically the Bill of Rights.

Although the process was launched in 2017, the installation was only completed towards the end of 2020 (see Photo 8.3). A major factor that delayed the installation was the objections of a group outside of the University, namely the Stellenbosch Interest Group (SIG).¹⁹ According to reports, the SIG objected to the imposing

19 The purpose of the SIG, as stated on its Facebook page post of 6 December 2017, is as follows:

The protection of our common heritage, inclusive of both the built and the natural environment; The preservation of the unique character of Stellenbosch and surroundings; Insistence on Town and Regional Planning of the highest order to promote controlled development which respects the historical fabric and which enhances and adds quality to the environment in and around Stellenbosch; To ensure, as far as possible, that development is based on sound architectural principles and design in harmony with the natural and historic character of Stellenbosch.

I have many questions about what is meant by "common heritage".

height of the installation, as it would block an unobstructed view of the Old Main Building (Keet, 2019). Furthermore, the argument was that because the words of the Preamble would not be legible from a distance, the three plates would simply be “onnodig en wanordelik”²⁰ (unnecessary and disorderly) (Keet, 2019). Although I have opinions on the merits of the objections raised by the SIG, my reflection goes beyond the merits of the objections. It was sobering to observe that an organisation such as the SIG has the capacity and agency to mobilise formal objections against the installation, all the way to the provincial Member of the Executive Committee for Arts and Culture.²¹ I wondered why other groups or individuals, such as those who were evicted from Die Vlake further down the road, were not joining the conversation either for or against the installation. I was astounded about the manner in which legal procedures were being used by outsiders in a manner that contradicts the wishes of those inside the University context.²² For me, this process elicited questions such as: what grants a certain group the power or voice that can in effect be more powerful than others?, who belongs to the place (both Stellenbosch and SU) so as to have a voice with power?, and to whom does an unobstructed view of the Old Main Building belong?

20 As per Patricia Botha, chairperson of SIG.

21 This is comparable to the manner in which Afriforum and the Federasie van Afrikaanse Kultuurvereniginge (FAK) would organise and rally against banning the gratuitous display of the old flag; see Nelson Mandela Foundation Trust v Afriforum, discussed further on in this chapter.

22 Here I include staff and students, the latter requesting some form of visual redress to break the dominance of the Old Main Building.



Figure 8.3: Preamble in front of the Old Main Building (photos by Strijdom van der Merwe)

In a challenge to the change of street names in Pretoria, the Constitutional Court in *City of Tshwane Metropolitan Municipality v Afriforum* relied on the Preamble to contextualise the issue. Although this decision dealt with street names that honour only a certain group of society, the Constitutional Court's statements concerning belonging are important for the transformation of the broader society. The Constitutional Court emphasised the underlying philosophy of the constitutional

dispensation as expressed in the Preamble, namely that South Africa belongs to all who live in it. The installation of the Preamble in a prominent place, directly in front of the Old Main Building, can therefore serve as a reminder that unlike in the past, when the University only belonged to a certain group of people, the University and, more broadly, the entire country, belong to all who live in it. In this regard, the importance of the symbolism of the installed Preamble in three languages directly in front of the Old Main Building cannot be underestimated.

Furthermore, I am hopeful that the conversations by those walking through or past the Preamble may be directed to topics that include injustices of the past, healing of wounds and belonging, which is necessary if the constitutional vision of establishing a more just and equal society is to be embraced. The Preamble installation contributes to altering a dominant institutional culture. It serves to decentre the visual symbolism of an imposing colonially inscribed building, which is alienating to black academic staff and students. The installation centres an inclusive and welcoming symbolism in such a way that people, including me, who have up to now been inscribed with outsider status, would begin to develop a sense of belonging in our institutional workspaces.

Curating the insider/outsider installation

The conversation on insiders and outsiders forms part of another visual redress process that I oversaw in my capacity as chair of the Faculty of Law's Transformation Committee. This idea emerged at a Faculty workshop facilitated by Prof. Elmarie Costandius in a process of concept mapping (Jackson & Trochim, 2002:312).²³ Participants were encouraged to map or draw different concepts and then link these various concepts to discover a general theme or idea. It was during this process that the idea of the Old Main Building as a fort was presented. As a fort, it included and protected some within, while excluding others. The most striking points raised during the workshop were those related to the Old Main Building and the exclusion of black bodies, most notably those of the forcibly removed community of Die Vlakte

23 Jackson and Trochim (2002:312) explain concept mapping as "an informal process whereby an individual draws a picture of all the ideas related to some general theme or question and shows how these are related".

who lived in close proximity to the building. Naturally, the conversation was also much broader, as the meanings of inclusion and exclusion are complex and varied, and dependent on a variety of factors, including, but not limited to, gender, sexuality and religion. Universities are by nature exclusionary spaces due to admission and appointment requirements. Although exclusion is no longer determined by race or gender, there remain factors that determine who is included and who is excluded.

After the workshop, the Transformation Committee, with the assistance of Prof. Costandius, embarked on a temporary insider/outsider installation. The purpose of the insider/outsider installation would be to start a conversation about who is an outsider, who is an insider, on what basis are these determined and what are the effects of such characterisations. For this purpose, we acquired several life-size cardboard people, or 'standees'. We placed a standee with a description 'outsider' outside the building, but in such a manner that the 'outsider' can 'see' a standee with the description 'insider' through the glass doors or windows. Students and staff were encouraged to converse with the standees by writing on them. The installation was to run for two weeks and the standees would be in different locations each day and could be rearranged. As we intended, many of the staff, students and even some learners from a nearby school engaged in conversation with the standees. On one standee, carrying the description 'outsider', the following was written: "If you black in this space, you automatically outside. This place is toxic", and "They look at my skin colour before I do or say anything". This captured a perspective of what it means to be black inside the Old Main Building and speaks to its existing institutional culture. There were also some neutral messages without institutional judgement posted on some of the other standees. On the standee with the inscription 'excluded', the quote by Alvin Toffler, "The illiterate of the 21st century will not be those who cannot read and write, but those who cannot learn, unlearn and relearn", was posted.

A specific incident that occurred during the installation caused me to reflect on my own status as a hesitant and uncomfortable insider. During the installation, one of the standees was removed, censored and returned to the installation by two female colleagues, without engaging me as the project custodian. Someone drew a

male genital on a particular standee, which represented a female body. The standee was removed and only returned after an A4 piece of paper with the word ‘censored’ was placed over the male genital. The censoring of the male genital evoked the following response by a female graduate student:

Despite this being a cardboard person it represents a person – a female person. The penis was most likely intended to be funny. Instead of engaging in the violation of the female body in an act of entertainment, our faculty is hiding it. Is this speaking to the mindset of the university? Of refusing to engage in anything that makes us uncomfortable?

One can probably interpret the drawing of the picture differently, but the questions that were raised are valid and would gain prominence when the gender-based violence protests erupted on campuses soon after the standees project was launched. It is interesting to note how quickly the actions of individuals were attributed to the Faculty, and ultimately to the University. This may be how the behaviour of individuals shape a certain institutional culture.

The action of removing the standee and the censoring of the picture that elicited the response of the student sort of left me out in the cold. Initially, I wondered why I, as custodian of the project, was not approached by my colleagues before they decided to remove, censor and replace the standee. Was the picture of such a nature that engagement was unnecessary, so the question about removal and censoring was a given? I for one did not think so. But I also did not have an immediate answer. For that reason, I was still consulting with people on how to deal with the standee and the drawing that was added. Some views offered during consultation expressed the need for providing room for engagement in light of the #EndRapeCulture campaign that has been ongoing on campus. The censoring of the drawing via its removal, however, killed that idea for me for the time being. I do, however, acknowledge that my female colleagues may have been affronted by the image in a way that I could not imagine. However, it was striking how easy it was for them to remove this standee from the installation and then return it (without the part that is affronting to them being exposed), while other pictures and symbols that affront me on a daily basis still adorn the walls and the plains.

One way to see what happened during this temporary installation is to regard myself as someone without power or agency, but that the power and agency rest elsewhere. In this regard, although I am meant to be an insider, the incident illustrated why I am actually an outsider. Although I am included in formal work-related tasks and processes, I am in fact excluded from informal conversations about what processes should be adopted to deal with a contentious issue in which I actually have a stake. Does this mean that I have no power, that I do not belong, or that I am still really an outsider – “an outsider within”? (Collins, 1986:S14–S32; Fikeni et al., 2020).²⁴

Opening up important questions, this specific visual redress process gave me a reason to pause for reflection. And the mere fact that I had these questions probably meant that I was able to put my finger on an institutional culture that alienated me as a black student and continues to alienate me as a black staff member. The upshot is that the visual redress process opened a conversation that would allow me and my colleagues to work towards a position where we are forced to think about how our actions, sometimes unconsciously inspired, affect others not similarly situated. This should enable a critical conversation on the prevailing institutional culture.

The Preamble as guiding visual redress process and unpacking institutional culture

The feeling of not belonging in a public institution of higher learning contrasts with the Preamble’s notion of belonging. What may therefore be required is a change in the visuals so that feelings of alienation can be transformed into feeling a sense of belonging.²⁵ As Mbembe (2015:5) indicates, it is not a matter of charity or hospitality or a liberal notion of tolerance or requiring assimilation. It is about “ownership of a space that is a public, common good” (Mbembe, 2015:5), which requires also addressing the institutional culture that gives rise to feeling neither at home, nor belonging. Addressing the institutional culture can take place through the process of

²⁴ Black academic staff often express feeling invisible in historically white institutions.

²⁵ Creating a space where black students and staff would choose to spend time to, in the context of the academic environment, be co-creators of knowledge.

engaging with the visuals and imagining and re-imagining what they can look like. The lessons learnt from these processes are also important in unpacking institutional culture that leads to exclusionary practices and behaviours.

Schmahmann (2014:1) states that the removal of offensive images and names on buildings can create a feeling of loss of culture or heritage, as it “eradicate[s] signs of each and every contribution made by white men”. On the other hand, it is argued that certain images must be removed, as they lead to “self-humiliation and self-debasement” (Mbembe, 2016:32), and therefore alienation. The Constitutional Court’s decision in *City of Tshwane Metropolitan Municipality v Afriforum* presents the Preamble as a medium through which these challenges can be mediated. According to the Court,

... colonialism or apartheid is a system so stubborn that its divisive and harmful effects continue to plague us and retard our progress as a nation more than two decades into our hard-earned constitutional democracy ... Almost all cities, towns and street names continue to reverberate with great sounds of veneration for the architects of apartheid, heroes and heroines of our oppressive and shameful colonial past. (*City of Tshwane Metropolitan Municipality v Afriforum*, 2016: para 4)

The cultural monopoly by one race can no longer be condoned. There is therefore a need to undo the effects of a system of racial, ethnic and tribal stratification of the past. This, according to the Court, is achieved *partly* by the removal of names (and one can include statues, pictures and symbols) that exalt elements of our past that cause grief to other racial groups or reopen supposedly healing wounds. It also means removing innocuous names that only honour or recognise people or history of one group (defined culturally or racially). In this regard, the Court stated that ...

... [n]o measure of sophistry, contortion, or strategy ought to be allowed to entrench any form of racial domination or exclusivity to privilege, honour and opportunities ... White South Africans must enjoy a sense of belonging. But unlike before that cannot and should never be allowed to override all other people’s interest ... Any indirect or even inadvertent display of an attitude of racial intolerance, racial marginalisation and insensitivity, by white or black people must be resoundingly rejected by all South Africans in line with the Preamble and

our values, if our constitutional aspirations are to be realised. (*City of Tshwane Metropolitan Municipality v Afriforum*, 2016: para 9)

This approach was subsequently also adopted by the High Court in *Nelson Mandela Foundation Trust v Afriforum NPC* (2019). In this decision, the Court had to consider whether the gratuitous display of the old national flag constitutes hate speech. The Court reiterated that the foundational values of the democratic society, as stated in the Preamble of the Constitution, should bind South Africans and guide our actions when considering aspects that involve visuals, such as the gratuitous display of the old flag, which is divisive and has the potential to cause harm. The Court considered the meaning attributed to the old flag by the Nelson Mandela Foundation as articulated through its CEO, Sello Hatang. Sello Hatang spoke to the memories brought to the fore upon seeing the old flag. These include feelings of shame when white children would call his grandmother (and by extension himself) a baboon and the remembrance of a system that saw black people as the ‘other’ and denied them the opportunity to be human (*Nelson Mandela Foundation Trust v Afriforum NPC*, 2019: para 23). The flag is therefore regarded as a symbol of “racism, white supremacy and the subjugation of the black population” (*Nelson Mandela Foundation Trust v Afriforum NPC*, 2019: para 78). Even though the FAK claimed that the gratuitous display of the flag is important, as it is “a symbol of reconciliation and unity between the English- and Afrikaans-speaking population”,²⁶ the Court reasoned that the unified white population oppressed the black population and therefore concluded that such an interpretation cannot be accepted in an inclusive democratic society. What this decision therefore illustrates is that visuals cannot be used in a manner that causes people to feel that they are the other, that they are not recognised as human and that they do not belong to or in South Africa.

It is arguable that these considerations, as informed by the Preamble, are important in visual redress processes and in the development of visual redress policies. Symbols, images and names, whether seen as individualistic or as a collective, that cause South Africans to feel that they do not belong, or that cause harm and suffering, should be subjected to a visual redress process. This process can take various forms, and

26 FAK affidavit as quoted in para 79 of the judgement.

the end result may be different in each unique context. What would be required, however, is that the process in itself (whether it results in a quick process of removal or a longer process of contextualisation or deconstruction) must be transformative in nature. The process should speak to individuals at a personal level in order to change behaviours, mindsets and world outlooks that keep a particular institutional culture in place and ultimately delay our progress as a nation.

Concluding remarks

In terms of the Constitutional Court's judgement in *City of Tshwane Metropolitan Municipality v Afriforum* (2016), there seems to be some constitutional parameters when it comes to the presence and/or removal of visuals in public spaces. Although it is relatively clear that there is no space for visuals that cause South Africans to feel that they do not belong, it must be recognised that the changing or removal of iconography alone is not sufficient to heal the deep wounds left in the wake of colonialism and apartheid. What is therefore required is not simply installing new art or removing hurtful symbols, but instilling the constitutional values within the hearts of people. It therefore seems clear that visual redress alone cannot effect transformation (Clark & Costandius, 2020:1–2). As former Chief Justice Pius Langa said in relation to moving from a society characterised by strife and untold suffering to a society based on fundamental rights and freedoms: “This is a magnificent goal for a Constitution: to heal the wounds of the past and guide us to a better future. For me, this is the core idea of transformative constitutionalism: that *we must change*” (Langa, 2006:352, own emphasis). I take Langa's plea to mean that we must be open to listen to the pain and fears of others and have honest, and sometimes difficult, conversations about what it means to live in a democratic South Africa where each one is mindful of visuals, processes and behaviours that may alienate or marginalise others. We must therefore all be mindful of the ideal that South Africa belongs to all who live in it, and not just to those who hold social, economic, political or cultural power.

To this end, visual redress processes go a long way to start conversations on belonging, about who is an insider and who is excluded. South Africans who want to

be part of a democratic South Africa must show up to the conversations and do some deep personal work reflecting on themselves in relation to others. Only by doing that would we be able to achieve a society where all may be able to claim to belong.

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